

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
BRIAN PINEIRO and EDUARDO PINEIRO,

Plaintiffs,

-against-

The CITY OF NEW YORK; New York City Police
Department Officer HELEN SKIRCHAK (Shield No.
12082); New York City Police Department Sergeant
DONALD GANNON (Tax No. 924574); New York City
Police Department Officers JOHN and JANE DOE 1, 2,
3, etc.; SECURITAS SECURITY SERVICES USA,
INC. ("SECURITAS"); SECURITAS Employees JOHN
and JANE DOE 1, 2, 3, etc.,

Defendants.
----- X

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs BRIAN PINEIRO and EDUARDO PINEIRO, by their attorneys, Beldock Levine
& Hoffman LLP, as and for their Complaint against the Defendants, allege as follows:

PRELIMINARY STATEMENT

1. This civil rights action seeks redress under 42 U.S.C. § 1983 and New York State law for injuries Plaintiffs sustained when New York City Police Officers and members of Securitas Security Services USA, Inc., a company contracted on August 29, 2015 to provide security at Yankee Stadium, excessively and without cause assaulted and arrested them.

2. On August 29, 2015, Plaintiffs, who are father and son respectfully, attended a soccer match.

3. Without probable cause or reasonable suspicion, the individual NYPD Officer Defendants and officers and employees of Defendant SECURITAS used excessive and unnecessary force, and falsely arrested the Plaintiffs.

4. Officers unlawfully tased Plaintiff Brian Pineiro in the chest, causing him serious physical and emotional damages.

5. Plaintiffs remained in custody for approximately 30 hours before they were released on their own recognizance.

6. Plaintiffs seek (i) compensatory damages for, *inter alia*, false imprisonment, psychological and emotional distress, and other financial loss caused by the illegal actions of the defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; and (iii) such other and further relief, including costs and attorney's fees, as this Court deems equitable and just.

JURISDICTION

7. This civil rights action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Plaintiffs' rights secured by the Fourth and Fourteenth Amendments of the United States Constitution; and for violations of Plaintiffs' rights under New York State common law.

8. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

9. Pursuant to CPLR §§ 503 and 504, venue is proper in Bronx County because it is the county in which the events giving rise to this action took place.

JURY DEMAND

10. Plaintiffs demand a trial by jury in this action on each and every one of their claims for which a jury trial is legally available.

THE PARTIES

11. Plaintiff EDUARDO PINEIRO is a citizen of the United States and the State of New York and was, at all times relevant to this complaint, a resident of Yonkers, Westchester County, in the State of New York.

12. Plaintiff BRIAN PINEIRO is a citizen of the United States and the State of New York and was, at all times relevant to this complaint, a resident of Yonkers, Westchester County, in the State of New York.

13. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

14. The City is authorized by law to maintain a police department, and does maintain the New York City Police Department (“NYPD”), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

15. Defendant HELEN SKIRCHAK (Shield No. 12082) is a New York City Police Officer who made false allegations that led to Plaintiffs’ false arrest and unlawfully detained and arrested Plaintiffs without suspicion of any illegal activity.

16. Defendant Sergeant DONALD GANNON (Tax No. 924574), is a New York City Police Sergeant who used excessive and unnecessary force on Plaintiff BRIAN PINEIRO and unlawfully detained and arrested Plaintiffs without suspicion of any illegal activity

17. Defendant New York City Police Department Officers JOHN and JANE DOE 1, 2, 3, etc. are NYPD Police Officers who unlawfully detained and arrested Plaintiffs without suspicion of any illegal activity.

18. At all times relevant herein, Defendants SKIRCHAK, GANNON, JOHN and JANE DOE 1, 2, 3, etc. (together referred to as the “Individual NYPD Officer Defendants”) have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City of New York (the “City”) and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

19. At all times relevant herein, Defendants SKIRCHAK, GANNON, JOHN and JANE DOE 1, 2, 3, etc., violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution of which a reasonable police officer in their circumstances would have known.

20. At all times relevant herein, Defendant SECURITAS SECURITY SERVICES USA, INC. (“SECURITAS”) is a Delaware Corporation authorized to do business in New York State, with its principle place of business at 875 Avenue of the Americas, Suite 501, New York, New York, 10001. Upon information and belief, SECURITAS provides security services at Yankee Stadium on the dates and times referenced herein.

21. SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc. are Employees of Defendant SECURITAS who, acting together with the Individual NYPD Officer Defendants, unlawfully detained, arrested, and used excessive force on Plaintiffs without suspicion of any illegal activity.

22. At all times relevant herein, Defendants SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc. were employees of the Defendant SECURITAS who were performing security services at Yankee Stadium on the time and date referenced herein.

STATEMENT OF FACTS

23. On August 29, 2015, Plaintiff EDUARDO PINEIRO took his 21-year-old son, Plaintiff BRIAN PINEIRO, to see a soccer match between the New York City Football Club (NYCFC) and the Columbus Crew Soccer Club (CCSC) for his birthday.

24. At the end of the game, at approximately 6:00 p.m., Plaintiffs notice a fight breaking out nearby between a fan of CCSC and a group of NYCFC fans.

25. The fight was nowhere near the Plaintiffs.

26. Though the fight was a distance away, Plaintiff EDUARDO PINEIRO told his son Plaintiff BRIAN PINEIRO that they should leave.

27. The Plaintiffs got up from their seats and proceeded to the stairs to exit the bleachers and the stadium.

28. Suddenly, Defendant SECURITAS Employee JOHN DOE 1, a security official who was employed by Defendant SECURITAS, grabbed Plaintiff EDUARDO PINEIRO's wrist.

29. Confused as to what was happening, Plaintiff BRIAN PINEIRO told the Defendant SECURITAS Employee JOHN DOE 1 not to touch his father.

30. Plaintiffs continued to exit the bleachers intending to leave the stadium.

31. At no point did Defendant SKIRCHAK grab Plaintiff EDUARDO PIENIRO's wrist. At no point did Plaintiff BRIAN PINEIRO push Defendant SKIRCHAK's arm away.

32. Plaintiffs BRIAN PINEIRO and EDUARDO PINEIRO continued to leave the stadium by walking up the stairs of the bleachers in order to exit the stadium.

33. At the top of the stairs, while still in the stairway of the bleachers, a number of uniformed NYPD officers and Defendant SECURITAS Employees approached the Plaintiffs.

34. The officers included, upon information and belief, Defendant Officer HELEN SKIRCHAK and Defendant Sergeant DONALD GANNON as well as a number of other Defendant JOHN and JANE DOE Officers.

35. The SECURITAS Employees included Defendant SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc.

36. As Plaintiffs calmly continued to exit the bleachers, a Defendant SECURITAS EMPLOYEE officer JOHN DOE 2 grabbed Plaintiff BRIAN PINEIRO and threw him on the railing at the top of the bleachers.

37. The force of the Defendant DOE 1's action's caused Plaintiff BRIAN PINEIRO to fall to the ground, hitting his head on the pavement.

38. Upon information and belief, NYPD Sergeant GANNON screamed "stop resisting." Brian was not resisting.

39. Upon information and belief, NYPD Officers JOHN and JANE DOE 1, 2, 3, etc. failed to intervene to stop the unconstitutional and outrageous conduct.

40. Upon information and belief, SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc. failed to intervene to stop the unconstitutional and outrageous conduct.

41. As Plaintiff BRIAN PINEIRO lay helplessly on the ground, Defendant Sergeant GANNON removed his taser from its holster and tased Plaintiff BRIAN PINEIRO in his chest without any reason or justification.

42. Plaintiff BRIAN PINEIRO screamed in pain.

43. Defendant NYPD Police Officer JOHN DOE 2 placed handcuffs on Plaintiff BRIAN PINEIRO. When Mr. Pineiro complained that the handcuffs were too tight, he was ignored.

44. At the same time, upon information and belief, Defendant NYPD Officers, including, but not limited to, Defendant SKIRCHAK, and Defendant SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc. jumped on Plaintiff EDUARDO PINEIRO and threw him to the ground, ripping his shirt.

45. Plaintiff EDUARDO PINEIRO heard the cries of his son, but was unable to respond or to help him.

46. Defendant SKIRCHAK placed handcuffs on Plaintiff EDUARDO PINEIRO.

47. Plaintiffs were taken to a holding facility within Yankee Stadium, where they remained for hours.

48. They were then transferred to the 44th Precinct and Central Booking.

49. In total, the Plaintiffs were unlawfully detained for approximately 30 hours.

50. In connection with Plaintiffs' arrest, Defendants prepared false and misleading police reports which they forwarded to the New York County District Attorney's Office. As a result, the District Attorney decided to prosecute Plaintiffs.

51. Defendant Officer SKIRCHAK falsely claimed that Plaintiffs EDUARDO PINEIRO and BRIAN PINEIRO had refused to comply with Employees of Defendant Securitas's request that they leave the stadium.

52. Defendant Officer SKIRCHAK also falsely claimed that she grabbed Plaintiff EDUARDO PINEIRO's arm.

53. Defendant Officer SKIRCHAK also falsely claimed that Plaintiff BRIAN PINEIRO pushed her arm away when she attempted to place Plaintiff EDUARDO PINEIRO under arrest.

54. As a result of the Defendants' conduct, Plaintiffs sustained the loss of liberty, emotional and psychological pain, embarrassment, humiliation, harm to their reputation, and deprivation of their constitutional rights

55. Based on the false, fabricated evidence that Plaintiffs were "refusing to comply with Yankee Stadium Security's request to leave the stadium," the Plaintiffs were charged with, *inter alia*, disorderly conduct.

56. After approximately 12 court appearances, all charges against Plaintiffs were dismissed on October 17, 2016.

57. As a result of the foregoing, Plaintiffs sustained, *inter alia*, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of liberty, physical restraints, and violations of their constitutional rights.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

(against Individual NYPD Officer Defendants)

58. Plaintiffs reallege and incorporate by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

59. In committing the acts and omissions complained of herein, Defendants SKIRCHAK, GANNON, and Defendant NYPD Officers JOHN and JANE DOE 1, 2, 3, etc., acting under color of state law, deprived Plaintiffs of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from arrest without probable cause;
- b. the right to be free from the creation of false, fabricated evidence;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification,

and of which detention Plaintiffs were aware and to which they did not consent; and

- d. the right to be free from the use of excessive and unreasonable force and seizure.

60. In committing the acts and omissions complained of herein, Defendants SKIRCHAK, GANNON, and Defendant NYPD Officers JOHN and JANE DOE 1, 2, 3, etc., breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

61. As a direct and proximate result of the actions of Defendants SKIRCHAK, GANNON, and Defendant NYPD Officers JOHN and JANE DOE 1, 2, 3, etc., including deprivation of Plaintiffs' constitutional rights, Plaintiffs suffered the injuries and damages set forth above.

62. The unlawful conduct of defendants SKIRCHAK, GANNON, and Defendant NYPD Officers JOHN and JANE DOE 1, 2, 3, etc. was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

FOURTH CAUSE OF ACTION

42 U.S.C. § 1983 Conspiracy

(against Individual NYPD Officer Defendants and Defendant Employees of SECURITAS)

63. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

64. The acts of the Individual NYPD Officer Defendants constituted conduct under color of state law which deprived Plaintiffs of rights, privileges, and immunities secured by the Constitution and laws of the United States.

65. The Individual NYPD Officer Defendants, under color of law conspired with the Defendant Employees of SECURITAS to deprive Plaintiffs of their constitutional rights.

66. In furtherance of this conspiracy and thereafter, Defendants jointly devised a false, exculpatory version of the events of August 29, 2015 and submitted false reports and statements to support and corroborate the fabricated charges lodged against the Plaintiffs.

67. The Defendants knew that there was no basis to arrest and use excessive force against the Plaintiffs, and conspired together to cover it up by falsely claiming that the Plaintiffs were, *inter alia*, resisting arrest.

68. As a direct and proximate result of the conduct alleged herein, the Defendants conspired to and, thereafter, deprived Plaintiffs of the right to be free from, *inter alia*, the use of excessive and unreasonable force and seizure, a clearly established right, under the Fourth and Fourteenth Amendments of the United States Constitution.

69. In committing the acts and omissions complained of herein, the Defendants breached their affirmative duty to intervene to protect the constitutional rights of the Plaintiffs from infringement by other law enforcement officers in their presence.

70. The unlawful conduct of these Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

FIFTH CAUSE OF ACTION

42 U.S.C. § 1983 – Violations of the Fourth and Fourteenth Amendments (against the CITY OF NEW YORK)

71. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

72. The unconstitutional conduct of the Individual NYPD Officer Defendants was directly and proximately caused by *de facto* policies, practices, and/or customs devised, implemented, enforced, encouraged, and sanctioned by the City whereby written policies are ignored in practice in favor of *de facto* policies.

73. The foregoing customs, policies, practices, procedures, rules, and usages include, but are not limited to, making arrests without probable cause and committing perjury and a failure by the NYPD to train officers regarding such unconstitutional conduct.

74. The existence of the foregoing customs, policies, procedures, rules, and usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in recent civil rights actions filed against the City including, but not limited to:

- a. *Cordero v. City of New York et al.*, 15-cv-3436 (JBW)(MDG) (E.D.N.Y.): police officers arrested a 58-year-old bodega owner as a result of the defendant officers' false and fabricated allegations against him;
- b. *Garnett v. City of New York et al.*, 13-cv-7083 (JSR) (JLC) (S.D.N.Y.): arrest of a man based on false and misleading information provided by undercover officer defendants;
- c. *Caraballo v. City of New York et al.*, 11-cv-8917 (JSR) (S.D.N.Y.): police officers arrest three individuals in Manhattan on false charges including assault in the second degree on a police officer; all charges were dismissed; CCRB found that officers lacked probable cause to arrest; and
- d. *Hemphill v. City of New York et al.*, 11-cv-2160 (AKH) (S.D.N.Y.): Police officers arrested an individual on false charges, including obstructing governmental administration in the second degree.

75. Defendant CITY OF NEW YORK developed and maintained customs, policies and practices with respect to falsifying evidence, exhibiting deliberate indifference to the constitutional rights of its citizens, which caused the violations of Plaintiffs' rights.

76. In 2014, the Civilian Complaint Review Board identified this disturbing trend: "From 2010 through 2013, the CCRB noted 26 allegations of false official statements: 2 in 2010; 3 in 2011; 8 in 2012; and 13 in 2013. However, in 2014, the number increased dramatically, and the Board noted 26 instances in just one year where investigations uncovered possible false official statements. In 23 instances, the underlying FADO complaint was substantiated. All 52 complaints occurred prior to 2014."¹

77. In 2015, this number rose to 59 and, in 2016, the number again was 23 instances.²

78. Numerous examples of such falsifications can be found through the present. *See, e.g.,* Rick Rojas, *Two N.Y.P.D. Officers Are Charged With Lying About a Suspect*, N.Y. Times, Feb. 17, 2017, available at <https://www.nytimes.com/2017/02/16/nyregion/nypd-sasha-cordoba-kevin-desormeau.html> ("Cyrus R. Vance Jr., the Manhattan district attorney, said the charges against the detectives were a 'gross violation of their training, N.Y.P.D. protocol and the law. When members of law enforcement commit misconduct,' he added, 'they threaten the credibility of our work and the safety of the citizens whom we are sworn to protect.'"); J. David Goodman, *Review Board Notes Rise in New York Police Officers' False Statements*, N.Y. Times, May 14, 2015 ("Officers documented 7,283 searches after stops in 2014, according to Police Department data contained in the report. Of those, one in 12 resulted in a complaint to the review board, a

¹ CCRB, 2014 Annual Report, available at <http://www.nyc.gov/html/ccrb/downloads/pdf/2014-annual-report-rev2layout.pdf>.

² CCRB, Appendix to CCRB Complaint Data, at 96, available at https://www1.nyc.gov/assets/ccrb/downloads/pdf/policy_pdf/annual_bi-annual/2016_annual-appendix.pdf

frequency that has increased sharply over past two years. In many cases, Mr. Emery said, the problem could be resolved by requiring further training.”); Michelle Alexander, *Why Police Lie Under Oath*, N.Y. Times, Feb. 2, 2017 (“The natural tendency to lie makes quota systems and financial incentives that reward the police for the sheer numbers of people stopped, frisked or arrested especially dangerous. One lie can destroy a life, resulting in the loss of employment, a prison term and relegation to permanent second-class status.”).

79. In fact, in an opinion issued on October 17, 2017 in *Cordero v. City of New York*, a case involved the alleged false arrest of a 58-year-old bodega owner, the Honorable Jack Weinstein granted a Plaintiff’s request to proceed on a *Monell* claim on the basis that “the police department has long been aware of a wide-spread practice of false arrests at the end of tours of duty in order to obtain overtime and that it has failed to sufficiently address this practice.²Link to the text of the note Plaintiff argues that the city's policy is not to track or adequately discipline policemen for testifying falsely. And that it has failed to supervise or properly discipline police officers with a record of being unsuccessful defendants in Title 42 U.S. Code Section 1983 cases because they fabricated evidence.” *Cordero v. City of N.Y.*, No. 15-CV-3436, 2017 U.S. Dist. LEXIS 171961, at *5 (E.D.N.Y. Oct. 17, 2017).

80. Judge Weinstein aptly stated that “police officers, unlike civilians, have the power to terminate constitutionally protected liberty; with this power comes great responsibility, as well as the need for appropriate oversight.” *Id.*

81. At all times material to this Complaint, Defendant the City of New York failed to properly train, screen, supervise, or discipline its employees and police officers, including Individual NYPD Officer Defendants, and failed to inform any supervisors of their need to train, screen, supervise, or discipline the Individual NYPD Officer Defendants.

82. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiffs' constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including the Fourth and Fourteenth Amendments.

83. As a direct and proximate result of the foregoing acts, omissions, systemic deficiencies, and the City's deliberate indifference, the Plaintiffs' constitutional rights were violated, because of which the Plaintiffs suffered substantial damages at an amount to be determined at trial.

84. As a result of the foregoing, Plaintiffs suffered the injuries and damages alleged herein.

FIFTH CAUSE OF ACTION

Negligence

(against Defendant SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc.)

85. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

86. Defendant SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc. owed Plaintiffs a duty of care, including the duty to exercise due care in the course of their duties as security guards.

87. Defendants SECURITAS Employees JOHN and JANE DOE 1, 2, 3, etc., through the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful security guard would have used under similar circumstances.

88. All of these acts were performed without any negligence on the part of Plaintiffs and were the proximate cause of the injuries to Plaintiffs.

SIXTH CAUSE OF ACTION
Negligent Hiring, Training, and Supervision under State Law
(against Defendant SECURITAS)

89. Defendant SECURITAS is liable to Plaintiffs because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline their agents, servants, and/or employees with regard to their aforementioned duties.

90. All of these acts were performed without any negligence on the part of Plaintiffs and were the proximate cause of injuries to them.

91. The acts and wrongful conduct of Defendant SECURITAS constituted negligent hiring, training, and supervision under the laws of the State of New York.

92. Defendants committed the foregoing acts intentionally, recklessly, willfully and/or with malicious disregard for Plaintiffs' rights and are therefore liable for punitive damages.

93. Defendant SECURITAS is liable for this wrongful conduct under the doctrine of *respondeat superior*.

DEMAND FOR RELIEF

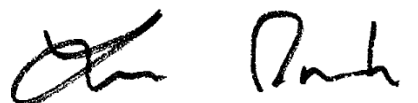
WHEREFORE, Plaintiffs demands the following relief against the Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from Defendants to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;

- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
November 1, 2017

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26 Fl.
New York, New York 10016
(212) 490-0400

A handwritten signature in black ink, appearing to read 'Luna Droubi', is written over a horizontal line.

Luna Droubi
Attorneys for Plaintiffs

VERIFICATION

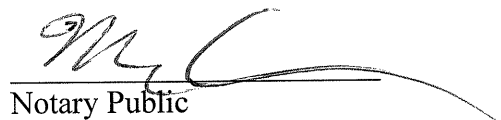
STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

I, Luna Droubi, being duly sworn, state:

I am the attorney for the Plaintiffs in this action. The foregoing Complaint is true to my knowledge except as to those matters therein stated on information and belief and as to those matters I believe them to be true. Pursuant to CPLR § 3020(d)(3), the verification is not made by Plaintiff Eduardo Pineiro or Plaintiff Brian Pineiro, a, because he is not in the county where I have my office.


Luna Droubi

Sworn to before me this 1st
day of November, 2017.


Notary Public

MARC A. CANNAN
NOTARY PUBLIC, State of New York
No. 02CA6265836
Qualified in Queens County
Commission Expires 07/16/2018 